> Considerable endowments have been granted in money, or by assignments of land or of the produce of the land by the former Governments of this country as well as by the British Government, and by individuals for the support of *mosques, Hindu temples,* colleges and choultries, and for other pious and beneficial purposes; and … endowments [are] in many instances appropriated, contrary to the intentions of the donors, to the personal use of the individuals in immediate charge and possession of such endowments; and… it is the duty of the government to provide that such endowments be applied according to the real intent and will of the granter [emphasis added].

Pertinently, this regulation applied to both Hindu and Muslim religious institutions. It was in force until 1839, when Christian missionaries back in England started protesting against administration of the religious institutions of 'heathens' by the Christian colonial government. In 1863, the Regulation of 1817 was replaced by the Religious Endowments Act, which applied to temples and mosques. The 1863 Act was then replaced by the Madras Hindu Religious Endowments Act of 1923, which was the first legislation to apply solely to Hindu religious institutions, in contrast to previous legislations. Perhaps, in the eyes of the coloniser, Muslims, being 'people of the book', were deemed less corrupt and immoral than idol-worshipping heathen, and hence were exempt from State interference. In 1927, the 1923 legislation was replaced by the Madras Hindu Religious Endowments Act of 1926 ('the 1927 Act'), which too applied solely to Hindu religious institutions. The 1927 Act was in force until 1951.

It was the 1927 Act whose constitutionality was originally challenged in writ petitions in 1951 by the Shirur Math from Udupi (in present-day Karnataka) and the Nataraja Temple in Chidambaram (in present-day Tamil Nadu) before the Madras High Court in what has come to be known as the Shirur Math case. The challenge to the 1927 Act was on the grounds that after the Constitution came into force on 26 January 1950, the framework of the 1927 Act had to be tested on the anvils of the Constitution. During the pendency of the writ petitions, the then Madras government repealed the 1927 Act and passed the Madras Hindu Religious and Charitable Endowments Act, 1951, which too, as the name reflects, applied exclusively to Hindu religious institutions. Accordingly, the writ petitions were amended to challenge the 1951 Act on the ground that it violated